Uday Bhan Singh vs State Of U.P. & Anr. on 13 November, 2019

Author: Anant Kumar

Bench: Anant Kumar

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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Court No. - 15

Case :- CRIMINAL APPEAL No. - 1706 of 2019

Appellant :- Uday Bhan Singh

Respondent :- State Of U.P. & Anr.

Counsel for Appellant :- Shiv Shankar Singh

Counsel for Respondent :- G.A.,Dileep Kumar Gautam

Hon'ble Anant Kumar,J.
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Counter affidavit filed on behalf of opposite party no.2 and rejoinder affidavit to the counter affidavit of the State are taken on record.

Heard learned counsel for the appellant, learned A.G.A. for the State as well as learned counsel for opposite party no.2 and perused the record.

This criminal appeal has been filed by the appellant against impugned order dated 28.08.2019, passed by the Special Judge, SC/ST Act, Sultanpur in Bail Application No.1936 of 2019 (State of U.P. Vs. Uday Bhan Singh), arising out of Case Crime No.329 of 2019, under Sections 147, 148, 149, 323, 302, 307 IPC and Section 3 (2) (V) of SC/ST Act, Police Station Kadipur, District Sultanpur. Further a prayer has been made to enlarge the appellant/applicant on bail in the said case crime.

In this case F.I.R. has been lodged by the complainant Dilip Kumar to the effect that on 01.07.2019 named accused persons along with 20 others were putting up electricity wire around the field to which the mother and father of the complainant opposed, on objection the accused persons had

given abuses by caste had beaten them, due to this on 02.07.2019 accused persons forming illegal assembly started beating with lathi, danda to the complainant and his family members. Accused Anil Singh entered the house of the complainant and made firearm injury to mother Lakhpati and father Dayaram due to which mother Lakhpati died and father also sustained firearm injury and he was in semi dying condition.

It is stated by learned counsel for the appellant that appellant is not named in the F.I.R. On the same day when the F.I.R. was lodged statement of complainant Dilip Kumar was recorded under Section 161 Cr.P.C. then for the first time name of the present applicant/appellant came into light. Even name of other co-accused Uday Bhan had not surfaced. Later on, on 15.07.2019 statement of injured Dayaram was recorded wherein name of the appellant Uday Bhan Singh came into light. It is also stated that infact as per version of the F.I.R. Lakhpati and Dayaram both had sustained firearm injury, which is not correct. Lakhpati was having an injury of lathi and danda. Daya Ram was having an injury of firearm but even in his statement Daya Ram has not disclosed as to who opened fire upon him. It appears that the occurrence had taken place in a mob and the present appellant was not named in the F.I.R. Later on name of the appellant came into light. One of the co-accused Ravindra Singh has already been granted bail by a co-ordinate bench of this Court vide order dated 05.11.2019, passed in Criminal Appeal No. 1914 of 2019. Since the appellant is not named in the F.I.R. and his name came later on, the appellant may be enlarged on bail, it is submitted.

Learned A.G.A. as well as learned counsel for the complainant have opposed the prayer for grant of bail. Learned counsel for opposite party no.2 has stated that out of fear complainant could not name the appellant in the F.I.R. It is also stated that the genesis of the occurrence had taken place on 01.07.2019 regarding which an F.I.R. was lodged by Ashish Kumari and Bhorai Ram. It is also stated by learned counsel for the opposite party no.2 that the appellant is a notorious criminal. He is having a gang of criminals and he is doing land grabbing and an F.I.R. was also lodged against him in District Lucknow.

In view of the above circumstances, the appeal is allowed and the impugned order dated 28.08.2019, passed by the Special Judge, SC/ST Act, Sultanpur in Bail Application No.1936 of 2019 (State of U.P. Vs. Uday Bhan Singh), arising out of Case Crime No.329 of 2019, under Sections 147, 148, 149, 323, 302, 307 IPC and Section 3 (2) (V) of SC/ST Act, Police Station Kadipur, District Sultanpur is set aside.

Let appellant/applicant (Uday Bhan Singh) be released on bail in the aforesaid case crime number on his furnishing a personal bond and two reliable sureties of the like amount to the satisfaction of the court concerned, subject to following additional conditions :-

> (i) The appellant/applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The appellant/applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code.

(iii) In case, the appellant/applicant misuses the liberty of bail during trial and in order to secure his presence, proclamation under Section 82 Cr.P.C. is issued and the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.

(iv) The appellant/applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 Cr.P.C. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

Order Date :- 13.11.2019 ML/-